

DEED OF SALE

MEMORANDUM OF AGREEMENT OF PURCHASE AND SALE MADE AND ENTERED INTO BY AND BETWEEN PARTIES.

WHEREAS the Purchaser is desirous to purchase the Property, hereunder defined, at Purchase Price set out herein; NOW THEREFORE the Purchaser offers to purchase from the Seller the Property, which the Seller shall accept by signature hereof, on the terms and conditions contained herein.

THE PARTIES.

SELLER'S DETAILS		PURCHASER DETAILS
1. NAME'S & SURNAME		
Physical Address :		
IDENTITY NUMBER		
2 nd . NAME'S & SURNAME		2 nd
Physical address :		
IDENTITY NUMBER		

The seller sells to the buyer; **ERF NO** _____ and
all the improvementstherein. ("THE PROPERTY")

1. BACK GROUND

1.1 WHEREAS the seller is the holder of the Deed of Grant, and owner of **ERF NO** _____
(**VHEMBE DISTRICT**)AND WHEREAS the
property is still registered in the names of the seller.

1.2 **AND WHEREAS** the buyer is desirous of purchasing the property from the seller and the
parties herein are competent to enter into a valid agreement.

1.3 **NOW THEREFORE** the parties hereby agree as follows:

2. PURCHASE PRICE

The Purchase Price of the Property is the sum of R _____ (_____). The parties record that, should VAT be payable, the said Purchaser Price is Inclusive of VAT.

3. TRANSFER

3.1 The property must be transferred to the purchaser as soon as possible after signing of this agreement provided full payment paid to the Seller.

3.2 The transferring attorneys are **RTENDANI ATTORNEY'S CONVEYANCERS & NOTARIES**

Contact no **071 213 9999 / 015 023 1087** email address **info@rtendaniinc.co.za**

3.3 The purchaser shall pay transfer fees and cost of this agreement, within 14 days (FOURTIEN) after being called upon to do so by the **Agents/ Attorneys/Conveyancers**.

3.4 The parties shall sign any relevant documents required in connection with registration of transfer.

3.5 The parties further agrees that the Seller will be liable to pay Municipality water, Services, rates and taxes at Thulamela Municipality in order to obtain the clearance certification, **The agents/attorneys shall use part of the purchase price to pay for these services, if paid on agents account.**

4. OCCUPATION

The BUYER will be entitled to occupation of the purchaser on the date of registration of transfer.

5. RISK AND BENEFIT THEREOF

5.1 The risk and benefit in the property shall pass to the purchaser on the date of occupation.

5.2 However should the above mentioned property be attached and executed by Sheriff of Court due to debts of the Seller, prior to the passing of Transfer of the property from the seller to the purchaser, the seller shall refund the purchase price to the Purchaser. No portion of the amount to be paid by the purchaser will prescribe prior to the lapse of a period of three years after the attachment/execution and/or knowledge by the purchaser of the attachment and/or execution of the property.

5.3 AGENT'S COMMISSION

The Seller shall pay Agent's commission of 10% of selling price
(_____)

6. PROPERTY STATUS

6.1 The Purchaser buys the property subject to any conditions, servitudes and encroachments affecting it, including:

6.1.1 The conditions and servitudes contained, or referred to in the Seller's Deed of grant or any prior deed of grant.

6.1.2 The provisions of any town planning scheme applicable to the property.

7. DOMICILLIUM CITANDI

The parties herewith choose "domicilium citandi et executandi" for all purposes and all notices and payments in terms of this agreement at: -

(1) The Seller:

Seller 1:
Address: _____
Email: _____

Seller 2:
Address: _____
Email: _____

(2) The Purchaser:

Purchaser 1:
Address: _____
Email: _____

Purchaser 2:
Address: _____
Email: _____

The parties may by notice in writing alter the addresses set out above.

8. CANCELLATION FOR BREACH

8.1 Should either party commit a breach of this agreement and fail to remedy the breach within (FOURTIEN DAYS) 14 days after receipt of the written notice to that the other party.

8.2 If the **Purchaser cancels** the agreement, He/She will **recover the Seller**-a reasonable compensation for necessary expenditure and interest he has incurred.

8.3 If the Seller cancels the agreement, He/She will recover the Purchaser-a reasonable compensation for necessary expenditure and interest he has incurred.

9. MUNICIPAL RATES AND TAXES

The Seller confirms The Seller confirms that he is aware that the full amount of rates and taxes, levies and all other charges are to be settled to the Local Authority/Local Municipality against registration of transfer. The Seller warrants that when obtaining the rates clearance certificate from the local authority. The Seller shall be liable to ensure that such payments are up to date and in as far as, it is not or may not be, hereby authorises the Conveyancers, as a first charge against the proceeds of the sale to settle the said amount on request to the said Local Authority/Local Municipality;

(1) The Seller and Purchaser by virtue of their signatures to this Agreement, acknowledge having been informed of the provisions of Section 118(1A) of Act 32 of 2000 in terms whereof a rates clearance certificate is required in respect of the Property, which certificate must be valid for a period of 60 (sixty) days from date of issue thereof. The Seller confirms that it is aware that in order to obtain a rates clearance certificate an upfront payment is required prior to transfer, in respect of rates, taxes, municipal charges, electricity and water and gas (if applicable).

(3) The signing of this Agreement constitutes the Seller's irrevocable authority to the said Conveyancers so to settle the aforementioned as well as the Purchaser's irrevocable authority to the said Conveyancers so to settle the aforementioned amount, which amount, if so paid on behalf of the Seller or for the Seller's benefit, shall be deducted from the Purchase Price.

10. VOETSTOOTS, WARRANTEES AND IMPROVEMENTS

The property is sold "voetstoots" and the PURCHASER acknowledges that he has inspected the property and that this Deed of sale has not been entered into as a results of any warranties or guarantees made by the SELLER/S or anyone acting on his behalf whether as to the size or condition of the property or the improvements thereon or any rights or conditions attaching thereto or otherwise affecting it, save as may be set out herein. The PURCHASER further acknowledges that he has inspected the Property and that he is aware of any visible defects.

11. OTHER TERMS AND CONDITION.

SIGNED AT _____ ON THE ____ DAY OF _____

AS WITNESS :

1. _____
seller

2. _____
Seller

SIGNED AT _____ ON THE ____ DAY OF _____

AS WITNESSES :

1. _____
Purchaser

2. _____

PERSONAL INFORMATION

SELLER:

Full names _____

Identity number _____

Spouse's full names _____

Spouse's identity number _____

*Marital status (Unmarried/Married out of community of
property/Married in community of property)*

Phone number (home) _____

Phone number (work) _____

Present bondholder _____ Branch _____

Bond account number _____

I confirm that the above information is true and correct.

SELLER

PERSONAL INFORMATION

PURCHASER:

Full names _____

Identity number _____

Spouse's full names _____

Spouse's identity number _____

*Marital status (Unmarried/Married out of community of
property/Married in community of property)*

Phone number (home) _____

Phone number (work) _____

Present bondholder _____ Branch _____

Bond account number _____

I confirm that the above information is true and correct.

PURCHASER